SUPREME COURT CASE NO. CRQ2024-001

IN THE SUPREME COURT OF GUAM
HAGÅTÑA, GUAM

IN RE: REQUEST OF LOURDES A. LEON GUERRERO, I MAGA'HÅGAN GUÅHAN, RELATIVE TO THE DUTIES OF THE ATTORNEY GENERAL OF GUAM TO EXECUTIVE BRANCH AGENCIES
PEOPLE OF GUAM / GOVERNMENT OF GUAM

PETITION FOR REHEARING

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Rehearing Standard

The Supreme Court of Guam issued its Judgment and Declaratory Judgment in *In re: Request of Lourdes A. Leon Guerrero, I Maga'hågan Guåhan, Relative to the Duties of the Attorney General of Guam to Executive Branch Agencies* on May 31, 2024. The Judgment and Declaratory Judgment were entered on the docket on May 31, 2024.

The Judgment and Declaratory Judgment provide that "any petition for rehearing in this case be filed within 14 days after the entry of judgment. Pursuant to GRAP 30(a)(2), the Attorney General petitions for a rehearing on the basis that particular points of law were overlooked, clarification of which would facilitate proper function of the Government of Guam in the future. The expedited nature of this proceeding risks potential oversights that can be mitigated through rehearing – such would allow for a refined opinion which greatly impacts the elected, Organic Act Office of the Attorney General and its dual function as Chief Legal Officer and Public Prosecutor.

Argument

I. The Guam Legislature Adopted Statutes Limiting the Creation of Confidential Communications Between Agencies and Their Attorneys

In its Declaratory Judgment, this Court states that "[t]hus, although the client is the agency, when one of the constituents of an agency communicates with the

agency's lawyer in that person's official capacity, the communication is confidential." Declaratory Judgment at 7, ln. 18-21. Reliance was made upon Jesse by *Reinecke v. Danforth*, 485 N.W.2d 63 (Wis. 1992), for this finding. *Danforth* involved an analysis of the attorney-client privilege relative to a private corporate entity and its constituents under Wisconsin law.

The analysis in *Danforth* is distinguishable from the immediate case as private corporations in Wisconsin are not subject to the same provisions as public corporations (i.e., Agencies) are in Guam. The Agencies are subject to both Guam's Open Government Law and the Sunshine Reform Act of 1999. This Court was unable to consider this legislation and its impact on confidential attorney-client communications. A divided loyalty exists created by Federal and local law.

It is well established that several elements must be met for a communication to an attorney to qualify as a privileged communication. One of those elements is that the communication is made in confidence. See *Arizona ex rel. Goddard v. Frito-Lay, Inc.*, 273 F.R.D. 545, 555 (D. Ariz. 2011) citing *United States v. Graf*, 610 F.3d 1148, 1156 (9th Cir.2010).[1] Additionally, "[a] party claiming the

[1] "The prerequisites necessary to the creation of the attorney-client privilege are: (1) legal advice must be sought, (2) from a professional legal advisor in his or her legal capacity, (3) the communications must relate to that legal advice, (4) they must be made in confidence, (5) by the client or the attorney, (6) the privilege is asserted by the client, (7) from disclosure by the client or the attorney, and (8) the protection must not be waived." *Arizona ex rel. Goddard v. Frito-Lay, Inc.*, 273 F.R.D. 545, 555 (D. Ariz. 2011)

privilege must identify specific communications and the grounds supporting the privilege as to each piece of evidence over which privilege is asserted…. Blanket assertions are 'extremely disfavored.'" *Hoffman v. Berg*, No. CV 05-00030, 2006 WL 8445868, at *2 (D. Guam 2006) citing *United States v. Martin*, 278 F.3d 988, 1000 (9th Cir. 2002). Unlike the private corporation context, many communications made between the constituent of an Agency and the Attorney General are not confidential under Guam law.

The Guam Legislature adopted legislation providing that the formation of public policy and decisions is public, and not secret.[2] Unlike private corporations, which are formed to serve private interests, public agencies are formed and controlled by the People. 5 GCA § 8102.

To further this policy, the Guam Legislature required that "[e]very meeting of a public agency shall be open and public…" 5 GCA § 8103(a). While private

[2] "The Legislature declares it is the policy of Guam that the formation of public policy and decisions is public and shall not be conducted in secret. The people of Guam do not yield their individual rights to the public agencies which serve them. The people, in delegating authority, do not give their public servants the right to decide what is good for the people to know and what is not good for them to know. The people insist on remaining informed so that they may retain control over the instruments they have created." 5 GCA § 8102.

executive sessions are authorized, they are limited to a handful of scenarios.[3] Furthermore, the Guam Legislature greatly narrowed the existence of privileged communications between an Agency and its attorney. 5 GCA § 8111(c) ("Under no circumstances shall a public agency hold an executive or closed meeting to discuss legal matters, impending legal matters or legal strategies with an attorney, except as herein provided below. All such discussions must be held in a public meeting and minutes shall be kept and opened to the public, except as herein provided…").

To qualify as privileged, a communication between an Agency and its attorney must meet seven (7) statutory requirements. 5 GCA § 8111(c). Noteworthy of these is: (1) the communication must be made in an executive session created on written recommendation of the attorney with an affirmative vote of a majority of the members of the Board of the Public Agency, 5 GCA § 8111(c)(1); (2) the communication must directly relate to ongoing litigation or litigation which has been threatened as is reasonably expected, 5 GCA § 8111(c)(2); (3) the executive session must be transcribed verbatim by an

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[3] "No public agency is prohibited… from holding executive sessions with the Attorney General, Chief of Police or the respective designated representatives of each on a matter which poses a threat to the public health, safety or welfare or… to consider the appointment, employment or dismissal of a public officer or employee or to hear complaints or charges brought against such officer or employee by another public officer, person or employee unless such officer or employee requests a public hearing… [or to] consider matters with the scope of the Public Employee-Management Relations Act." 5 GCA § 8111.

authorized court reporter, 5 GCA § 8111(c)(3); and (4) the transcript is only temporarily sealed unless the judiciary, upon review, orders a prolonged, temporary, sealing. 5 GCA § 8111(c)(7).

Communications made outside of executive session are not confidential and no attorney-client privilege can arise from them. *Neu v. Miami Herald Pub. Co.*, 462 So. 2d 821, 824 (Fla. 1985) ("The Sunshine Law explicitly provides for public meetings; communications at such public meetings are not confidential and no attorney/client privilege can arise therefrom."). Nor are communications made in an executive session confidential if they do not meet the exacting requirements of 5 GCA § 8111(c). Furthermore, any privilege which may exist is qualified and "disappears altogether when there is any reason to believe government misconduct occurred." *Berg*, 2006 WL 8445868, at *2 (D. Guam 2006) citing *Alexander v. FBI*, 193 F.R.D. 1, 10 (D.D.C. 2000) (privilege not applicable to protect attorneys' discussion regarding agency's disclosure of certain letters, where disclosure of the letters constituted a criminal violation of the Privacy Act).

The Guam Legislature has also adopted the Sunshine Reform Act of 1999, which broadly applies to executive branch Agencies.[4] The Act makes

[4] "Agency means any authority of the government and includes a department, institution, board, bureau, commission, council, committee of Guam government, branch, autonomous instrumentality, public corporation funded by public taxes or funds, or other public entity of the government of Guam, whether or not it is within or subject to review by another agency." 5 GCA § 10102(a).

communications from those Agencies to their attorney subject to disclosure, except for communications "pertaining to pending litigation to which the agency is a party, until the pending litigation has been finally adjudicated or otherwise settled". 5 GCA § 10108(a).

While 5 GCA § 10108(i) provides that "[a]ll existing privileges or confidential records or other information expressly protected under the law shall not be abrogated by this Act," the provisions of that Section are subject to the Open Government Law. Additionally, the attorney-client privilege set forth in the Rules of Evidence is narrowed in scope to certain actions in a Court, and does not extend privileged status to communications between an Agency and its attorney.[5] *Miami Herald Pub. Co., a Div. of Knight-Ridder Newspapers v. City of N. Miami*, 452 So. 2d 572, 573 (Fla. Dist. Ct. App. 1984) ("We find no indication that the legislature intended by enactment of the Evidence Code, with its narrowly defined scope, to abrogate this preeminent public policy.").

Even if an exemption of the Sunshine Act applies, that exemption is waived if disclosure has been made to the public. *Staton v. McMillan*, 597 So. 2d 940, 941 (Fla. Dist. Ct. App. 1992) ("However, the statutory exemptions do not apply if the

[5] "These Rules apply generally to civil actions and proceedings, to criminal cases and proceedings, to contempt proceedings except those in which the court may act summarily." GRE 1101(a).

information has already been made public."). Such a waiver applies to any Agency communication not subject to 5 GCA § 8111(c).

The intent of Guam's Open Government Law and Sunshine Act comport with jurisprudence related to Freedom of Information Act requests. *Nat'l Labor Relations Bd. v. Robbins Tire & Rubber Co.*, 437 U.S. 214, 242 (1978) (The purpose of FOIA is to require the release of government records upon request and to "ensure an informed citizenry, vital to the functioning of a democratic society, needed to check against corruption and to hold the governors accountable to the governed.").

Furthermore, the Guam Legislature adopted 5 GCA § 30107 regarding the disclosure of legal opinions from the Attorney General. That Section provides in part that, "[a]ll legal memoranda or opinions, except those prepared with regard to actual or pending litigation, or which give opinions on matters which, in themselves are not public, shall be public documents." The statute further provides that the Attorney General shall provide "each such legal memorandum or opinion to the Legislative Secretary and the Compiler of Laws for publication… no later than seven (7) days subsequent to the date of delivery… to the person or agency requesting such memorandum or opinion…" 5 GCA § 30107. "The Attorney General shall be personally responsible for [e]nsuring that all opinions and memoranda are delivered… subject to a fine of One Hundred Dollars ($100.00) for

each opinion or memoranda which is not delivered… within the time period prescribed…" 5 GCA § 30107. This Section appears to require disclosure consistent with matters disclosable under the Open Government Law and the Sunshine Reform Act of 1999, which conflicts with a traditional attorney-client relationship.

The above statutes promulgated by the Guam Legislature greatly curtail the ability of an Agency to claim attorney-client privilege as to its communications. This is contrary to a private corporation, such as the one contemplated in *Danforth*, which is not subject to open government laws. Thus, a communication between the constituent of an Agency with its attorney is not automatically privileged. Rather, the Agency, and its constituents, must meet the exacting requirements of the Open Government Law to claim privilege – such privilege being temporary and not permanent. A holding otherwise abrogates the laws adopted by the Guam Legislature providing for transparency in government operations.

II. A Broad Finding that All Constituent Communications with the Attorney General are Subject to Privilege Impinges the Organic and Statutory Powers and Duties of the Attorney General

The Attorney General is the Chief Legal Officer of Guam. 48 U.S.C. § 1421g(d)(1). The Attorney General of Guam has the statutory powers and duties set forth in the Organic Act and the Guam Code Annotated, in addition to common

law powers. 5 GCA § 30103. Among these common law powers is the power to bring proceedings that the elected Attorney General deems necessary for the enforcement of the laws of the state, the preservation of order, and the protection of public rights and interests. See *People ex rel. Harris v. Rizzo*, 214 Cal. App. 4th 921, 937, 154 Cal. Rptr. 3d 443, 458 (Cal. App. 2013). The Attorney General is statutorily vested with "cognizance of all matters pertaining to public prosecution, including the prosecution of any public officials." 5 GCA § 30104, and "… cognizance of all legal matters… involving the Executive Branch of the government of Guam…" 5 GCA § 30102. A clear and un-reconcilable divided loyalty is created, under the May 31, 2024 Declaratory Judgment, between the Attorney General's duty and a government official.

As the Chief Legal Officer, the Attorney General "possesses such rights and responsibilities as may be defined by law to make decisions on behalf of the governmental client that are within the authority of a client." *Restatement (Third) of the Law Governing Lawyers* § 97(1) (2000). This right is also set forth in the Preamble of the Guam Rules of Professional Conduct. GRPC, Preamble ¶ 18.[6] Furthermore, a confidential communication by the government cannot exist without written approval of the Agency attorney – often the Attorney General. 5 GCA § 8111(c)(1). In such context, the Attorney General is a holder of the right to the privilege. Therefore, the Attorney General may waive the attorney-client

privilege of a government organization when such waiver is necessary for the enforcement of the laws of Guam, the preservation of order, and the protection of public rights and interests. This power is supported, and not abrogated, by the laws of Guam, the Guam Rules of Professional Conduct, and the Restatement (Third) of the Law Governing Lawyers.

III. Communications from the Constituent of an Agency to the Office of the Attorney General Evidencing Impropriety are Not Confidential, and Must be Reported to the Attorney General

The Attorney General is the Chief Legal Officer and Public Prosecutor of Guam, and is the only officer empowered to represent the People of Guam in these capacities. *State ex rel. Beeler, Schad & Diamond, P.C. v. Burlington Coat Factory Warehouse Corp.*, 369 Ill. App. 3d 507, 513, 860 N.E.2d 423, 427 (Ill. App. 2006) ("The Attorney General is the chief legal officer of the state 'and the only officer empowered to represent the people in any suit or proceeding in which the State is the real party in interest, except where the constitution or a constitutional statute may provide otherwise.'"). Nothing in the Organic Act or the Statutes of Guam empower any other office to perform these duties.

In this capacity, the Attorney General is authorized to represent the interests of Guam, of its People, generally. See *Fogle v. State*, 295 S.W.3d 504, 510 (Mo. Ct. App. 2009). This representation is impeded by a general holding that

communications evidencing impropriety from the constituent of a government agency to the Attorney General are confidential, attorney-client communications. This is a rule which threatens general mischief.

If an Assistant Attorney General working with a Guam agency official learns through conversation that a particular application for a contract was given priority due to a previously undisclosed financial relationship with the official, then that Assistant Attorney General is duty bound to report such illegal activity to the Attorney General or other law enforcement in order to protect the Agency and the People of Guam. A determination otherwise creates an unreconcilable conflict that violates Guam law.

This is clear from the above analysis that there is no expectation of privacy or attorney-client privilege of a government agency or official outside the provisions of the Open Government Law. Were the attorney in private practice with an individual client who, in seeking legal advice, had revealed information indicating the commission of a past crime, the attorney could not disclose that information without violating professional obligations. However, in the government attorney context, the attorney serves the Agency, and not the individual who temporarily occupies one of its offices. “The lawyer is not prevented by rules of confidentiality from acting to protect the interests of the organization by disclosing within the organization communications gained from

constituents who are not themselves clients. That follows even if disclosure is against the interests of the communicating person, of another constituent whose breach of duty is in issue, or of other constituents. Such disclosure within the organization is subject to direction of a constituent who is authorized to act for the organization in the matter and who is not complicit in the breach…" *Restatement (Third) of the Law Governing Lawyers* § 96, Comment e (2000) (Internal citations omitted).

The government lawyer must take steps to protect the interest of the Agency, including disclosure to the highest authority in the Agency. *Restatement (Third) of the Law Governing Lawyers* § 96, 97 (2000). The government lawyer must also take appropriate steps "with respect to an act of a constituent of the governmental client that violates a legal obligation that will likely cause substantial public or private injury or that reasonably can be foreseen to be imputable to and thus likely result in substantial injury to the client." *Restatement (Third) of the Law Governing Lawyers* § 97(2) (2000).

Such steps include issuing a report to the Attorney General, who has "… cognizance of all legal matters… involving the Executive Branch of the government of Guam…" 5 GCA § 30102. Such cognizance is necessary to bring proceedings necessary for the enforcement of the laws of Guam, the preservation

of order, and the protection of public rights and interests.[7]

As established above, the Attorney General is authorized to make decisions for government clients that are traditionally reserved for the client. The Attorney General, and his Deputies and Assistants, have inherent authority to report acts which threaten an Agency, Guam, or its People, with mischief, so that appropriate actions may be taken by the Office of the Attorney General to mitigate mischief and to uphold the laws of Guam.

IV. The Organic Act and Guam Law Vest the Powers of Chief Legal Officer and Prosecution of Public Officials in the Attorney General

In its Declaratory Judgment, this Court states that the Attorney General has an actual conflict of interest when he advises "a government officer in their official capacity on matters related to an offense the officer is charged with." Declaratory Judgment, 8 at lines 21-25. This Court relied upon the reasoning set forth in *People ex rel Deukmejian v. Brown*, 624 P.2d 1206 (Cal. 1981) (in bank). *Deukmejian* cites to *Arizona State Land Department v. McFate*, 87 Ariz. 139 (Ariz. 1960), in

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[7] Of note, this duty exists in Federal law. See 28 U.S.C. § 535(b) ("Any information, allegation, matter, or complaint witnessed, discovered, or received in a department or agency of the executive branch of the Government relating to violations of Federal criminal law involving Government officers and employees shall be expeditiously reported to the Attorney General by the head of the department or agency, or the witness, discoverer, or recipient, as appropriate…"); See also 48 U.S.C. § 1424-4 (referencing Part II of Title 28, United States Code).

support of its reasoning, as Arizona has a similar constitutional structure to California.

While, like California and Arizona, the Governor of Guam is also tasked with supervision of the executive branch of Guam and responsibility for the faithful execution of the laws of Guam, 48 U.S.C. § 1422, Guam differs from California and Arizona in that its Attorney General is vested with "cognizance of all matters pertaining to public prosecution, including the prosecution of public officials." 5 GCA § 30104. Rather, Guam's Attorney General is similar to the Federal Attorney General who also has a dual-function as Chief Legal Officer and prosecutor. California and Arizona do not follow this model.

Unlike Guam, California and Arizona do not have an Attorney General that is directed to prosecute public officials. As a result, the reasonings set forth in *Deukmejian* and *McFate* are not tailored for Guam. The rationale of those decisions does not contemplate an Attorney General with dual-function as Chief Legal Officer and Public Prosecutor.

Additionally, unlike California, Guam does not grant its Governor the authority to oversee the operations of the Attorney General and to require reporting of the operations of his office to the Governor. The Governor of Guam has no powers in the Organic Act to oversee the operations or appointment of the Attorney General. The Guam Legislature determined to make Guam's Attorney

General an elected position specifically to eliminate direct Governor oversight and control – to create independence and accountability of the Attorney General to the People. In this aspect, the Attorney General is similar to the Governor.

V. The Organic Act Does Not Authorize the Governor to Appoint an Attorney with the Powers of the Attorney General – Such Appointment Violates the Separation of Powers

In its Declaratory Judgment, this Court determined that the Governor is qualified to appoint attorneys to, in limited circumstances, serve functions reserved to the Attorney General in the Organic Act and the Statutes of Guam. This power is not codified, nor does it exist in the Organic Act. Nothing at law authorizes the Governor to delegate the powers and duties of the Attorney General to an independent attorney. Such a power is ultra vires and is solely within the Guam Legislature's province.

The Organic Act provides the People of Guam with a choice. They can either: (1) allow for the appointment of an Attorney General by the Governor, with advice and consent of the legislature, to serve at the pleasure of the Governor, 48 U.S.C. § 1421g(d)(1); or, (2) provide by laws promulgated by the Guam Legislature for the election of the Attorney General by the People. 48 U.S.C. § 1421g(d)(2). The Organic Act is silent on the appointment of an independent or

special Attorney General while the Office of the Attorney General is occupied.[8]

The Guam Legislature determined that the Attorney General of Guam shall be appointed by election of the People. 5 GCA § 30101(a). No statutes were adopted providing for the appointment of a special or independent Attorney General while the Office of the Attorney General is occupied.

The Office of the Attorney General is separate and distinct from the Office of the Governor. See 48 U.S.C. §§ 1421g(d), 1422. The Attorney General has a foundation in the common law, 5 GCA § 30103, and is an Organic Act Officer entrusted with broad duties as the Chief Legal Officer of Guam to represent its People and their government. *State ex rel. Com'r of Transp. v. Med. Bird Black Bear White Eagle*, 63 S.W.3d 734, 772–73 (Tenn. Ct. App. 2001) ("As a constitutional officer, the Attorney General has been entrusted with broad duties as the State's chief civil law officer and is expected to discharge these public duties to the best of his or her abilities."). The Guam Legislature also vested the Attorney General with cognizance of public prosecution, including the prosecution of public officials. 5 GCA § 30104.

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[8] Of note, Federal law provides for the appointment of special Attorneys General and independent attorneys by the Attorney General. See 28 U.S.C. § 515 (Attorney General may appoint special attorneys); 28 U.S.C. § 592 (Attorney General may seek appointment of an independent counsel on application to the court); See also 48 U.S.C § 1424-4 (referencing Part II of Title 28, United States Code).

The Governor is an Organic Act officer who serves as the chief executive officer of Guam and "has only the authority and powers granted to [her] by the Constitution and the general law." *Commonwealth ex rel. Beshear v. Commonwealth Off. of the Governor ex rel. Bevin*, 498 S.W.3d 355, 369 (Ky. 2016). Her's is an Organic Act office, with no existence at common law. *Baxter v. Brooks*, 29 Ark. 173, 185 (Ark. 1874) ("The office of governor does not exist by virtue of the common law. It is a creation of the constitution."); *State ex rel. Bennett v. Bonner*, 123 Mont. 414, 422, 214 P.2d 747, 752 (Mont. 1950) ("The office of governor does not exist by virtue of the common law.").

The Governor cannot exercise powers beyond her mandated authority. *Barbour v. State ex rel. Hood*, 974 So. 2d 232, 239 (Miss. 2008) ("However, no Governor, or for that matter, any governmental official, can exercise power beyond their constitutional authority."). An exercise of such power is ultra vires and inorganic. The United States Congress and the Guam Legislature only gave the Governor certain enumerated powers, and set forth certain procedures to replace the Attorney General. Allowing the Governor to appoint a replacement for an Attorney General still sitting in office is not contemplated in the laws they promulgated.

Nor can the Judiciary vest new powers in the Governor which are not set forth in the Organic Act – it can only give effect to existing laws. *Osborn v. Bank*

of U.S., 22 U.S. 738 (1824). ("Courts are the mere instruments of the law, and can will nothing. … Judicial power is never exercised for the purpose of giving effect to the will of the Judge; always for the purpose of giving effect to the will of the Legislature; or, in other words, to the will of the law.").

The language of 48 U.S.C. § 1421g(d)(1), authorizing the Governor to appoint an Attorney General upon vacancy in that office, was abrogated as a result of the Guam Legislature providing by law for the election of the Attorney General of Guam by the Guam electorate. Even were it not abrogated, no provision exists to empower the Governor to appoint an independent attorney with the cognizances and powers reserved to the Attorney General. Only the Attorney General may delegate his authority. 5 GCA §§ 30106, 30109.

The power of the Governor set forth in the Declaratory Judgment to appoint an independent attorney to execute the powers of the Attorney General abrogates the power of the Legislature to determine that the Attorney General is appointed by election of the People, and the power of the People to elect an Attorney General that will represent their interests in the government. It sets the stage for the Governor to circumvent the discretion of the elected Attorney General to not take action relative to fact-specific scenarios. This is especially pertinent in regards to issues on which the Attorney General and Governor disagree.

For example, if the Attorney General determines that prosecution of an action, criminal or civil, is not in the interest of Guam, he may choose not to act. Should the Governor disagree, they could then seek appointment of an independent attorney to take such action the Attorney General has declined to take. Such process would implicate the Court, requiring it to review the appointment, which invariably would involve nonjusticiable political questions. Were such appointment successful, the Governor would be able to circumnavigate the Attorney General, as well as the Legislature and the ability of the People to elect an Attorney General to represent their legal interests. Such a scenario is neither contemplated nor authorized by the Organic Act or the laws of Guam. It is in direct conflict with the statutory and common law schemes governing Guam.

Absent statutory or Organic Act authority to the contrary, no one but the Attorney General may initiate the delegation of the powers of his office to another attorney. The exercise of such power by the Governor, or the investment of that power in the Governor by the Judiciary, is contrary to the Organic Act and the power of the Guam Legislature to promulgate legislation. It threatens the Separation of Powers between the government branches and is inorganic.

Conclusion

For the legal reasons set forth herein, the Attorney General respectfully requests that the Court GRANT our Petition for Rehearing, and modify its declaratory judgment accordingly, especially considering the speed in which this matter was brought before this Honorable Tribunal and the importance of the Organic Act and Guam Legislature's statutory construction issues.

Respectfully submitted this 14th day of June, 2024.

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GENERAL

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Certificate of Service

I hereby certify that on June 14, 2024, I electronically filed the foregoing document with the Supreme Court of Guam by using the electronic filing system and that the following parties or their counsel of record will be served electronically:

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I declare under penalty of perjury that the foregoing is true and correct.

Respectfully submitted this 14th day of June, 2024.

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